

Case called out.

Counsel for DHR twice called out, absent.

It is noticed from the order sheet that, that on many occasions, this court has directed to DHR to take proper steps against Jdr on the correct address.

However, despite the repeated opportunities and lapse of considerable time, the decree-holder has failed to appear and prosecute the execution petition diligently.

It is relevant to refer to the judgment of the Hon'ble Supreme Court in Periyammal (Dead) through LRs and Ors. Vs. V. Rajamani and Anr. in Civil Appeal Nos. 3640-3642/2025, wherein the Apex Court, by order dated 06.03.2025, directed all High Courts to ensure that pending execution petitions are disposed of within a period of six months.

In view of the long pendency of this execution petition, failure of the decree-holder to take any effective steps, and in light of the directions of the Hon'ble Apex Court and the High Court circular, this Court finds no reason to keep this execution petition pending any further.

Accordingly, the execution petition is dismissed for non-prosecution.

The decree-holder is at liberty to take appropriate steps in accordance with

law, if it is within the limitation.

Office is directed to return the copy of decree to the counsel for DHR upon proper verification and acknowledgment.

04.07.2026

**XXXIV ACC & SJ., & Spl. Judge,  
(NDPS), Bengaluru. (CCH-35)**